

Rehan Minhas
66C Chandos Crescent
Edgware
HA8 6HL
05 December 2025

RE: Outcome of Stage 2 Grievance Appeal Hearing

Dear Rehan

I am writing to confirm the outcome of the Stage 2 Grievance Appeal Hearing held on 27 November 2025, which was arranged following your appeal submitted against the grievance outcome issued to you on 10 November 2025.

The appeal was heard by myself and supported by Zoe Hughes (HR Business Partner). At our meeting, you confirmed that you were content to proceed without a companion and that, due to a Microsoft Teams system issue, you agreed that Zoe would take manual minutes.

As explained at the meeting and agreed with you, the purpose of the appeal was to address the four grounds of your appeal:

1. Procedural Unfairness
2. Failure to Consider Material Evidence
3. Irrational or Unreasonable Conclusions
4. Data Protection / Confidentiality Concerns

I have now completed a full and careful review of the appeal meeting discussions, your written submissions (including those provided during the meeting), the original grievance decision, minutes, documentation and witness evidence.

After reviewing all information, I have concluded that the original grievance process was conducted in a fair and reasonable manner and that the findings reached were supported by the evidence available. Your appeal is therefore not upheld.

The reasons for this decision are summarised below.

1. Procedural Unfairness

You stated that the investigation improperly relied on your line manager's self-declaration that no Excel file containing your health information existed and should instead have conducted a "forensic IT audit."

Findings

- HR met directly with your line manager, reviewed his OneDrive structure, and identified all files used to store routine management information.
- These files were extracted and independently reviewed by the Company's legal advisers as part of your DSAR, who confirmed that none contained health-related information about you. Confirmed in the letter dated 21 October 2025.
- You stated during the appeal that you did not know the filename, nor could you provide any saved copy or screenshot. You also confirmed that you did not challenge your line manager at the time he allegedly showed you the entry.
- When asked what further steps you believed should have been taken, you confirmed that you could not specify what a "forensic IT audit" would involve or how its results should be interpreted.
- You further acknowledged that it would not be possible to demonstrate that the file did not exist, as you remained certain that you had seen it during a discussion with your line manager. Given your firm belief in the file's existence, you considered the investigation's inability to locate it to be indicative of shortcomings within the investigative process.

Conclusion

Reasonable investigative steps were taken to locate any file that could contain health information. No evidence was found to substantiate the existence of such a file, nor has new evidence been presented through the appeal. Accordingly, this appeal ground is not upheld.

2. Failure to Consider Material Evidence

You stated that several colleagues did not respond to your requests for peer feedback and that this indicated managerial influence or a cultural barrier affecting disabled employees.

Findings

- Witness statements confirm that colleagues received your email but did not respond because it is *not normal practice* within Lonza to provide peer feedback unless specifically instructed by a line manager.
- Employee 6 from the investigation advised that they had spoken to you directly with regards to your request.
- Colleagues did not state that management discouraged them from responding; rather, they indicated that it is not usual to provide peer reviews informally.
- You were unable to identify evidence linking the lack of responses to managerial instruction, nor evidence that this practice disproportionately disadvantaged you compared with non-disabled colleagues.
- The original investigation reviewed the witness statements and reasonably concluded that no campaign or coordinated effort existed to block feedback.

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Conclusion

While it is understandable that you wished to receive developmental feedback, there is no evidence that material evidence was ignored or that peers were prevented from responding. Accordingly, this appeal ground is not upheld.

3. Irrational or Unreasonable Conclusions

You stated that the original investigation failed to recognise a temporal pattern of “escalating scrutiny” after your disability disclosure on 13 September.

Findings

- You described colleagues asking if you were well, supervisors checking your fitness to return to the clean room, and your probation being extended.
- The original investigation found, and your appeal confirmed, that colleagues asked after your welfare because you were frequently leaving the cleanroom due to illness, and this was visible to them. This was not directed by management.
- Your probation extension was consistent with the normal practice of extending operators’ probationary periods to six months due to training requirements.
- You were unable to provide evidence of targeted behaviour or discriminatory intent.
- No new information was presented that would materially alter the original conclusions.
- Although you raised that setting equal targets across an intake could potentially discriminate against colleagues with a disability you did not raise or present any evidence during appeal that it specifically disadvantaged you.

Conclusion

The original conclusions were reasonable and supported by witness testimony. There is no evidence of discriminatory scrutiny or coordinated action. Accordingly, this appeal ground is not upheld.

4. Data Protection / Confidentiality Concerns

You stated that your manager and supervisor breached GDPR by discussing your health issues (“tummy issues”) without your consent.

Findings

- GDPR Article 9 allows processing and limited sharing of special category health data where necessary for “occupational health” or “assessment of working capacity,” or for ensuring health and safety.

- Supervisors explained they shared limited information (e.g., “tummy issues”) strictly to assess your fitness to enter and remain in cleanroom environments.
- There is no evidence that health information was shared beyond what was necessary for operational safety or that it was shared wider than required.
- No evidence of inappropriate file storage or unauthorised access was found.

Conclusion

The sharing that occurred fell within the permitted duty-of-care and safety exemptions under GDPR. The original conclusion that no breach occurred was therefore reasonable. Accordingly, this appeal ground is not upheld.

Overall Conclusion

Having reviewed each of your grounds of appeal individually and collectively, I find that:

- the original grievance investigation was fair, reasonable and aligned with both Lonza’s policy and ACAS guidelines;
- no new evidence has been presented that would materially change the findings;
- the conclusions reached were appropriate based on the evidence available.

Your grievance appeal is therefore not upheld.

Next Steps

This letter constitutes the final stage of the Company’s Grievance Procedure and there is no further internal right of appeal.

Should you require any support moving forward, please speak with **Laura Jones HRBP** who can advise on the resources available.

Thank you for your engagement throughout the appeal process. I appreciate that this has been a difficult experience for you and wish to acknowledge the time and effort you have taken to present your concerns clearly.

Yours sincerely,

Nic Murrell
Appeal Manager